

VCU332067 Navarro, Yesenia vs. AWI Management Corporation

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-14

Motion: Motion to Compel Arbitration

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Re: Navarro, Yesenia vs. AWI Management Corporation

Case No.: VCU332067

Date: September 14, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion to Compel Arbitration

Tentative Ruling: To deny the motion

Background Facts

In this matter, Plaintiff sues Defendant AWI Management Corporation under PAGA.

Defendant seeks to compel arbitration of the “individual” PAGA claim and stay this matter as to the “representative” PAGA claim.

Facts – Agreement to Arbitrate

In support, Defendant provides the declaration of its Human Resources Manager who indicates they are the authorized custodian of records, including the retention of business and employee personnel files and records for Plaintiff. (Declaration of Reilly ¶¶1-3.) Reilly indicates Plaintiff's personnel file reflects an Arbitration Agreement signed by Plaintiff in handwriting. (Declaration of Reilly ¶¶8-11 – Ex. C.) Further, that Plaintiff was presented with the Agreement on December 12, 2022, that it was signed the same day and that this was the first date of employment. (Declaration of Reilly ¶11.) Further, that Plaintiff did not opt out of the Agreement. (Declaration of Reilly ¶12.)

Plaintiff does not challenge that Plaintiff signed the Agreement, but instead argues that the Agreement's purported waiver is unenforceable.

Authority and Analysis – Agreement to Arbitrate

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (Code Civ. Proc. § 1281.2(a), (b).) (emphasis added.)

Absent a challenge by the nonmoving party, this burden is met by simply providing a copy of the arbitration agreement. (Baker v. Italian Maple Holdings, LLC, 13 Cal. App. 5th 1152, 1160 (2017); Cal. Rules of Court, rule 3.1330.) “For purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Management Corp. (2001), 88 Cal.App.4th 215, 218; Sprunk v. Prisma LLC (2017) 14 Cal.App.5th 785, 793.)

However, when the opposing party disputes the agreement, then the opposing party must provide evidence to challenge its authenticity. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.)

Under California law, “[t]he burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164-165.) “However, the burden of production may shift in a three-step process.” (Id. at 165.)

“First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation.]” (Gamboa, supra, 72 Cal.App.5th at p. 165.) “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’ [Citation.]” (Id.) “For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ [Citation.]” (Id.)

Here, this burden is met through attachment of Exhibit C as to Plaintiff’s handwritten signature to the Agreement.

Therefore, the Court finds an agreement to arbitrate.

Facts – FAA Application

Here, the Agreement states, as to the FAA:

“This Agreement is covered by and made pursuant to the Federal Arbitration Act (the ‘FAA’), 9 U.S.C. §1, et seq, and shall be construed, interpreted and governed in accordance with the FAA”

Authority and Analysis – FAA Application

The party asserting the FAA applies to an agreement has “the burden to demonstrate FAA coverage by declarations and other evidence.” (Hoover v. American Income Life Ins.Co. (2012) 206Cal.App.4th 1193, 1207; see Shepard v. Edward Mackay Enterprises, Inc. (2007) 148Cal.App.4th 1092, 1101)

“The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963.)

Plaintiff does not oppose the application of the FAA to the Agreement.

Facts – Scope of Agreement

The Agreement states it applies to:

“...any and all claims, disputes, causes of action, lawsuits, proceedings, and/or controversies ("Claims"), past, present, or future, relating to or arising out of Your employment with the Company. This includes Claims that the Company may have against You or that You may have against the Company and its parent companies, holding companies, agents, subsidiaries and affiliated companies, officers, directors, successors, assigns, or alleged joint employers (collectively, the "Parties" to this Agreement). This Agreement also specifically covers all Claims, asserted or unasserted, that You or the Company has or may have against each other, which predate the execution of this Agreement, including Claims brought on Your behalf in any potential class or representative action filed before or after this Agreement was signed.”

Authority and Analysis – Scope of Agreement

The Agreement broadly covers claims including the single cause of action under PAGA.

Facts – Waiver

Here, the Agreement states:

“You and the Company acknowledge and agree that You and the Company are each voluntarily waiving the right to a trial or to participate in any class or representative action.”

Additionally, the Agreement contains a more specific waiver:

4. California Private Attorneys General Act Waiver. The Class and Representative Action Waiver also specifically includes any claims or causes of action brought under California's Private Attorneys General Act ("PAGA"), California Labor Code § 2698 et seq., to the maximum extent allowed by applicable law. You therefore agree that the Class and Representative Action Waiver covers all PAGA claims, whether characterized as individual claims, non-individual claims, representative claims, or derivative claims. Any dispute as to the enforceability of the Class and Representative Action Waiver shall be decided exclusively by a court of competent jurisdiction and not by the arbitrator.

Further, the Agreement states:

“3. Class, Collective, and Representative Action Waiver. If there is more than one Claim between the Company and You, all such claims will be heard in a single arbitration. Claims between the Company and other employees will each be heard in separate arbitration. You hereby voluntarily waive any right to participate, in any manner, in a class, collective, or representative action ("Class and Representative Action Waiver")...”

Authority and Analysis – Waiver

In *Viking River*, the United States Supreme Court held that, under an agreement permitting such, a PAGA cause of action may be divided into individual and representative claims and that the individual claims may be ordered to arbitration: "PAGA authorizes any 'aggrieved employee' to initiate an action against a former employer 'on behalf of himself or herself and other current and former employees' to obtain civil penalties that previously could have been recovered only by the State in an [Labor Workforce and Development Agency] enforcement action." (*Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 645.) The "individual PAGA claim" is the claim for the violations suffered by the aggrieved employee and the "representative PAGA claim" is the PAGA claim arising out of events involving other employees. (Id. at 648.)

The *Viking River* decision "left undisturbed" and "intact" both of the rules from *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348 that (1) prohibited categorical waivers of the right to bring a PAGA action in any forum and (2) prohibited waivers of PAGA claims on behalf of other employees, i.e., non-individual or representative claims. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1117-1118.)

However, the United States Supreme Court held that the third rule, which prohibited the "division of PAGA actions into individual and non-individual claims through an agreement to arbitrate" was preempted by the FAA. (Id. at 1118.)

Specifically, the *Viking River* Court stated:

"The agreement between *Viking* and *Moriana* purported to waive 'representative PAGA claims. Under *Iskanian*, this provision was invalid if construed as a wholesale waiver of PAGA claims. And under our holding, that aspect of *Iskanian* is not preempted by the FAA, so the agreement remains invalid insofar as it is interpreted in that manner. But the severability clause in the agreement provides that if the waiver provision is invalid in some respect, any portion that remains valid must still be 'enforced in arbitration.' Based on this clause, *Viking* was entitled to enforce the agreement insofar as it mandated arbitration of *Moriana's* individual PAGA claim." (Id. at 1924-1925.)

As summarized by *Adolph*: "The high court explained that an anti-splitting rule 'unduly circumscribes the freedom of parties to determine "the issues subject to arbitration" and "the rules by which they will arbitrate," [citation], and does so in a way that violates the fundamental principle that "arbitration is a matter of consent."' (*Viking River*, at p. 659.) Requiring parties to adjudicate a PAGA action entirely in one proceeding, the high court said, 'compels parties to either go along with an arbitration in which the range of issues under consideration is determined by coercion rather than consent, or else forgo arbitration altogether. Either way, the parties are coerced into giving up a right they enjoy under the FAA.' (*Viking River*, at p. 661.) Thus, *Viking River* requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA." (*Adolph*, supra, 14 Cal.5th at 1118-1119.)

"There is no individual component to a PAGA action because "every PAGA action . . . is a representative action on behalf of the state." [Citation.]" (*Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 87.) The term "individual" refers to those claims brought by a plaintiff as a representative of the State and which seek to recover civil penalties under PAGA for Labor Code violations experienced by the plaintiff. (See *Galarsa v. Dolgen California, LLC* (2023) 88 Cal.App.5th 639, 648 [referring to these claims as "Type A" claims].) The term "non-individual" refers to those claims brought by a plaintiff as a representative of the State and which seek to recover civil penalties under PAGA for Labor Code violations experienced by employees other than the plaintiff. (*Galarsa*, at 649 [referring to these claims as "Type O" claims].)

As summarized by the California Supreme Court in *Adolph*, an agreement that is covered by the FAA may require arbitration of "alleged Labor Code violations personally sustained by a PAGA plaintiff — so-called 'individual' claims." (*Adolph*, supra, 14 Cal.5th at 1114, 1119.) "[W]hen an appropriate arbitration agreement exists" and "a plaintiff has filed a PAGA action comprised of individual and non-individual claims," the trial court must "bifurcate and order [the] individual PAGA claim[] to arbitration." (Id. at 1126, 1123.) In this circumstance, the "order compelling arbitration of [the] individual claim[] does not strip the plaintiff of standing to litigate non-individual claims [i.e., claims on behalf of other employees] in court." (Id. at 1123) Instead, "the individual PAGA claim[] in arbitration remain[s] part of the same lawsuit as the representative claims remaining in court." (Id. at 1126.) The plaintiff would thus be "pursuing a single PAGA action "on behalf of [himself or herself] and other current or former employees," albeit across two fora." [Citation.]" (Id.)

Here, the PAGA Waiver expressly “includes any claims or causes of action brought under California’s Private Attorney General Act” and that the “Representative Action Waiver covers all PAGA claims, whether characterized as individual claims, non-individual claims, representative claims or derivative claims.”

As such, the Court turns to the Representative Action Waiver, which states “You hereby voluntarily waive any right to participate, in any manner, in a class, collective, or representative action (“Class and Representative Action Waiver”).”

This Court finds this language is a wholesale waiver of Plaintiff’s entire PAGA claim, as it seeks to voluntarily waive any right to participate, in any manner, in any representative action whether characterized as individual, non-individual or representative. The specific language of the Agreement does not split PAGA claims into an arbitrable individual PAGA claim and non-arbitrable representative PAGA claim, but instead seeks to bar adjudication, in any form, of the entirety of the PAGA claim.

As such, the Court will not enforce the waivers and therefore denies the motion to split the PAGA claim and compel arbitration of the Type A claim.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.